第六款處分書

Translation

Memorandum of the principle of the course of action taken towards the aboriginal territory of Formosa.

(No 6).

On the 22nd of September, the ten persons beginning with Prince Kung, sent to ambassador Okubo a letter with another writing to answer the questions in articles. Their principle was that if we would give the answers to your questions explaining them in detail by the laws of our country, they will be so numerous that our writing brush might not only wear away nor our lips be parched, but even the several servants employed successively, could fail to account them, beside our right of independence will be violated. Your Excellency proposed the question in articles and asked for their explanations in detail, Whilest our yamen only answered them, but still asked no question in our turn. Such a mode of question must be considered as too hard, because they would be like a criminal examination by a judge. But now our answer reduced to the two articles following, will explain them.

The Articles 1. the section 1. The matter of the murder of shipwrecked crew, if belonging to our people will be examined and managed by the local officials, or if to foreigners, by giving an order to the local officials, after being consulted.

アジア歴史資料センター
Japan Center for Asian Historical Records
http://www.jacar.go.jp/

consulted with our yamen by the
minister, or by being consulted with
its neighbouring Taotai by the consul,
minding that a private matter
should not a publilic one and
a vulgar custom not affect the ge
neral law. The section 2 Ats
for the collection of the tax from
the native tribes, some are col
lected in money, some in the
native products and some in the
money value for the products,
which is mentioned in the re
cord of the Board of population
and revenue. The section 3.
Ats for an evidence of education,
the learning of a few children
certainly should not prove it.
But it must not be considered
as the evidence of non-education
that there are some native inha

bitants who have no learning.
The section 4. Formosa is a part of
our Empire, and its interior moun
tains also ought to be a part of
our Empire. The section 5. After
our treaties with foreign nations were
construted, any affairs relating to
the both nations were examined and
managed, in our part, without delay
of one day if once consulted.
The section 6. Ats for to restrain
a violation and punish a murder
it is never the case that our coun
try did take no care for them."
"The Article 11. the section 1.
To have no authority and no army
established only relates to the Wild
tribes, which is in the same man
ner, as each territory in the China
proper can not always have its
special authority and to be govern
ed

ed separately by each court or each town is in the same manner as in the China Proper each district or village is governed by an authority without an exception. These meanings are never inconsistent."

On the 27th of September the ambassador Okubo sent to Young-li-Yamen a Writting of argument, the principle of which was that "if When a territory has no governing court and no law to rule its inhabitants, though there are some influences and some controls done by other nation, the latter pretends it to be its dominion, its right is doubtful this question now is an important subject for the two country Till it had been decided, it is useless that We attempt to consult a mode of its administration and its future welfare, Which it is in our need to affirm. Therefore We offer a Volume of the summary of the international law, to make it convenient for your examination."

If the aboriginal Formosa is beyond your empire, our treaty of friendship does not extend to it, and there could be no doubt of our intervention. If your Excellencies do not confound our question of a fact of your governing and educating the natives, with our intervention to the different modes of your legislation, your doubt will be dispelled at once. Still questionable points on your reply in letter are mentioned in another Writting Which now is added".

The

アジア歴史資料センター
Japan Center for Asian Historical Records
http://www.jacar.go.jp/

The Writing said that in the Article 1 the section 1. We asked no question of a right of your administration, but a fact of your governing the aboriginal Formosa. The natives generally practice the custom of plunder and pillage. It is not a custom to be admitted. If it may be admitted it is said, there is no law to govern them. If there is no law to govern them, it can not be proved to be a dominion of any nation. The section 2. your Excellencies frequently mentioned the quotations of Hoo-tse as the evidences of your arguments relating to the Formosa affair, and we reading the supplement to the Hoo-tse learnt that there is as mode of trade, Which also is practiced by the Dutch. The mode

is that, on the 2nd of fifth month in each year, the account officers assemble the court, Where the traders also assemble. Amounts of the duty on each native port being called up, the traders Who wish to accept its commerce, call up their own names and recognize it, on which the names and the amounts of the duty accordingly are recorded in the register, and the sums are collected from them. The times of the collection are divided to four seasons, and the traders Who have recognized it, accompanied by their partners, go to the native tribes to commerce With them. All the products of the native tribes and all the articles they demand, are bartered through hands of the traders. The tribes in the southern and the northern Formosa practice

アジア歴史資料センター
Japan Center for Asian Historical Records
http://www.jacar.go.jp/

practice deer-hunting, and the products are bartered for the articles of the trading companies, of which the flesh is dried and the skin is sent to the officers for the payment of the estimated sum of the duty. Yan-sui-foo-tse mentions that the tribes that pay the duty are the tamed and the other that do not so are the Wild savages. The savages do not pay any tribute to the government; the only tax which is levied is from the trappie parties; and their trappies with savages are left to themselves, the government affording no protection nor making any interference with them. These two passages coincide with my previous assertions. Though you do always appeal to the Yushi (the previous

coal received) and take as the evidence the fact of the savages being taxed, but the statements which I can find therein are as above. And, again, though you refer us to the taxation books which are preserved in the Internal Department, and on which all the particulars of the island taxation of past many years are minutely entered; these particulars are such as to not correct the false appearance of things nor inform its real condition. The nature of things will be made clear to you, only when you take personal survey of the actual condition on the locality. 3rd. It is extremely improbable, that a people which has not been brought under complete jurisdiction by the labour of two hundred years would be thoroughly

thoroughly learned either a short
term of three years. A territori-
al possession must be accompanied
by the political and judicial rea-
lity; and where is the reality in
these two matters? 4th. It is to
be so to the head of a nation,
and especially it is at the pleasure
of your government when it is
expressly mentioned in the article
of Treaty; but what I have called
your extreme dullness do by no
means refer to these matters. More-
over, if you hold yourselves respon-
sible for this; Why does your go-
vernment permit those of America
and England to punish the
criminal savages themselves, in the
cases of, a few years ago, the
sailors belonging to those coun-
tries being barbarously murdered

by the islanders? and why it does
not take upon itself the same res-
ponsibility, on the occasion of Goya
shima's mission, and pronounce
the country to be without its juris-
diction? These two questions clearly
show, that the land does not be-
long to your government. 5th The
point which I wish you will please
is the existence of government and
not its difference. 1st of second
article. If we suppose, at the
time when Kikuchi has been driv-
en to the shore of the island, and
suffered the cruelties; that the ter-
ritory does not belong to your go-
vernment, he would not take the
trouble of appealing to you and
asking for the indemnity. But we
are in sincere gratitude for the
kind treatment and ample pro-
tection

tection which the sufferers have received from your officials here; and you must be well aware of it by the expression of obligation made at that time, by our consul at your country. In all these questions, there can be no understanding; the replies you have favoured me with, being widely diverted from the points which I seek to know. I beg, therefore, in the present document you will favour me with the clearer reply. Treating on international law, a French writer says, that, "When a country takes possession of a new unoccupied land, unless it takes real possession of it, or it institute an official establishment there, and derive real profits from it, the law does not re-

cognize the right of its sole jurisdiction." An English writer says on same subject "the possession of a land must be supported by real evidence." "the more announcement of intention to possess himself of a land does not confer a man the right of possession." Again the same writer says. "When a country discovers an island, though there is no doubt of its being the first discoverer, it can not be said to be in its possession, unless it can prove it by real act." "the right of possession" Again he says "extends only to those parts of adjacent country and islands, which evidently can not be laid hand to, by other nations; those which is not under actual cultivation not being

being to be claimed". And, also, in the language of a German priest. "A land which a nation wish to take possession of, must always be followed by real occupation and confirmed by a permanent organization." "The sovereignty to a land not belonging to any nation again he says, ought to be gained by holding and possessing it, but the mere intention, mark, or declaration of holding the land, is like to holding it and then to relinquishing it, and is not considered as a proof of possessing the sovereignty, generally also he says, the title of the possession of a land, is decided by discovering, holding, and governing it, but erecting the flag

of a nation, and indicating the intention of holding the land, are not considered as a proof of having the sovereignty there. Wild, also he says, is gained by settling the people, promoting the civilization and establishing the government to the occupied lands which were without inhabitants, or possessed by a savage tribes, generally the sovereignty is not possessed unless the government exists really there. "It, also he says, is not unnatural, that meaning of the possession, implies a society of men; therefore if a nation annexes, to its own territory, some land of others, and yet do not settle the people, there nor do establish the government there, she can not be considered as

as having the sovereignty, but this is considered as offering the obstruction to the right of possession of other nation.

As above said, although a land is possessed by conquests and discoveries, the sovereignty is not had, unless the real government is established there; and either to possess and then to relinquish land, or to lay more mark, there are considered as adopting temporarily the sovereignty thereof. If a land which is without any established government, be taken by others, it not implies any violation of the law of nations."

As already said, while China is repeating obscure discussions on the authorities of the

books published by her own country, Japan discusses according to the enlightened opinions European jurists which were practiced by them; and still if China do obscure reply, it could not be said to discuss the most important subject.

アジア歴史資料センター
Japan Center for Asian Historical Records
http://www.jacar.go.jp/